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Virginia Board of Education, Business Meeting, Thursday, October 24, 2024

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- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=SWoRPS-BIH4
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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[00:05:12] And I will now call this meeting to order. As is customary for the board, we will begin with a moment of silence, followed by the Pledge of Allegiance.

[00:05:43] Okay, is there a motion to approve the agenda as presented?

[00:06:03] Second. Dr. Bryce? Aye. Mr. Rotherham? Aye. Mr. Hanson? Aye. Dr. Northern? Aye. Ms. Kilgore? Aye. Ms. McPherson? Aye. And chair votes, aye.

[00:06:18] Staff has provided the members of the board with draft minutes before the meeting. Is there a motion to approve the minutes as presented by the board? So moved. second dr bryce aye mr rotherham aye mr hanson dr northern miss mcpherson miss kilgore and chair buts i it is the pleasure of the board to have with us today students from louisa county middle school band we appreciate you all being the feature of our meeting today so thank you for being here

[00:06:54] um we like to highlight the wonderful programs across the commonwealth like y'all's program and we're so excited to have you with us here today to show us all of your talents so um i would like to ask mr rotherhade i'm sorry miss mcpherson to do the introduction for this one please the louisa county middle school band which is under the direction of mr tommy dawes

[00:07:28] the bobcat band features seventh and eighth grade student musicians who have successfully completed the beginning band course last school year the band earned a superior rating at the district 13 vboda concert band assessment festival making them the first band to do so in louisa county history the band was also instrumental in earning louisa county middle the school's vmea blue ribbon award

[00:08:02] which recognizes music programs with superior performances from all of their school's top ensembles the bobcat band concluded the 2023 and 2024 school year with a first place finish at the music in the parks festival please help me welcome the bobcat band from louisa county middle school

[00:08:27] we're so thankful that you put us on the right foot as we move into the work that we have to do

[00:13:14] today so i know you all are heading back to school use this as your opportunity to give yourself a

[00:13:21] good start too so thank you so much i would like to ask mr rotherham if he would introduce our next

[00:14:14] segment of our program for the morning we have some awards that we would like to present thank you madam president we have two awards that i'm extremely excited to present the first one is the Flava David Cox Award, Virginia K-12 World Language Teacher of the Year. This award is presented annually by the Foreign Language Association of Virginia, Flava, to a K-12 educator who has demonstrated excellence in world language teaching. The recipient of this award is recognized for outstanding contributions to language education, their innovative teaching practices and what they bring to the classroom, and their commitment to student success in learning

[00:14:52] languages. This year's recipient, Lauren Paz-Saldan, a Spanish teacher at Annandale High School in Fairfax County, is the 2024 recipient of this award. Ms. Paz-Saldan will represent Virginia in the Regional World Language Teacher of the Year competition. Her work includes active participation in cultural and heritage language programs, leadership roles in the Sunshine Committee and faculty equity teams, and contributions to professional development throughout publications and presentations and if you know anything about annadale high school it's a wonderful very diverse school community uh and so i'm sure she does uh is a fantastic contributor

[00:15:29] to that please join me in welcoming and recognizing miss paz sildan the helen warmer burke flava

[00:16:06] distinguished service award so also from the foreign language association of virginia is one of the highest honors bestowed by flava recognizing individuals who have made significant contributions to the field of world languages over their career. The award highlights a lifetime of dedication to language education, advocacy, and service within the language teaching community, so inside and outside the classroom in the community.

[00:16:29] Dr. Paul R., he goes by Dick Kittner, is the 2024 recipient of this award. He has been a driving force in expanding world language education opportunities, particularly, and this is extremely important given the shortages we have of language teachers in rural areas.

[00:16:45] Dr. Kintner's innovative leadership and commitment to professional development has had a significant impact on the field. For the past 14 years, he's acted as the host site coordinator for three of the five Governor's World Language Academies. Please join me in welcoming and congratulating

[00:17:01] Dr. Kintner for a career of impactful service. I would ask Ms. Kilgore if she would introduce our Blue Ribbon Schools. Good morning. We are here to proudly celebrate some of Virginia's

[00:17:37] strongest performing schools. The 2024 National Blue Ribbon Schools reflect the full diversity of American education and serve students from all backgrounds. While awardees represent a wide array of schools, they share common traits. National Blue Ribbon Schools are led by teachers who articulate a clear vision of instructional excellence and uphold high standards. They showcase effective teaching methods and offer robust professional development for their staff.

[00:18:06] Data-driven instruction is a hallmark, and there is a concerted effort to ensure every student succeeds. Collaboration among families, communities, and educators is a key component of their success. A national blue ribbon award flag displayed in a school's entryway or on a flagpole is a widely recognized emblem of exceptional teaching and learning.

[00:18:29] These schools serve as models of effective and innovative practices for educators across the nation. 8 Virginia schools from across the Commonwealth were named as 2024 National Blue Ribbon Schools by the U.S. Department of Education out of 356 schools in the 2024 cohort.

[00:18:49] The U.S. Department of Education recognizes all schools based on student performance, data including assessment results, student subgroup performances, and graduation rates. Schools are recognized in both or either of two performance categories.

[00:19:05] the first exemplary high-performing schools these schools are among the top performers in their state as measured by state assessments are nationally normed tests the second exemplary achievement gap closing schools these schools excel in narrowing achievement gaps between different student groups and the overall student body so the virginia schools named as national blue ribbon schools and the performance category of exemplary high-performing schools were and are And if you'll just stand, we're going to hand out certificates in a moment, but if you will just stand as a school.

[00:19:43] McLean, Spring Hill Elementary School, Fairfax County Public Schools. Virginia Beach, Green Run Collegiate, Virginia Beach Public Schools.

[00:20:05] Langley, AFB, Bethel Manor Elementary School, York County Public Schools. Clifton, St. Andrew, the Apostle School, Arlington Diocese.

[00:20:24] Fincastle, oh, excuse me, the Virginia school's name is National Blue Ribbon Schools in a performance category of exemplary achievement gap closing schools are Fincastle Century Central Academy Middle School, Bottas Hawk County Public Schools.

[00:20:42] And this one is a point of privilege. I'm extremely, I'm proud of everybody, but this group are all three of my former students, so that kind of is pretty close to my heart.

[00:20:59] So, Gate City Middle School, Scott County Public Schools. Noakesville, T. Claywood Elementary School, Prince William County Public Schools. And, in my area, Saltville Elementary School, Smith County Public Schools.

[00:21:23] So, we have a certificate, and as I read out the school and the superintendent or principal, whichever are both that are here, if you'll come forward, we will give you your certificate.

[00:21:40] Bottetok County, Region 6, Central Academy Middle School, Dr. Jonathan Russ and the principal Jordan Pinkard.

[00:22:15] Fairfax County, Region 4, Spring Hill Elementary School, principal and Amy Briggs. You can bring everybody.

[00:22:27] Bott County, Region 7, Gate City Middle School, Ray McConnell Assistant Principal, and Mara and Megan.

[00:22:58] Prince William County, T. Claywood Elementary School, Principal Andrew Burchette, Smith County, Region 7, Saltville Elementary School, Superintendent Dr. Dennis Carter, Principal Mitzi Frye, Virginia Beach, Region 2, Green Run Collegiate School, Principal Rion Patricio, I probably didn't say that correctly, you can correct me when you get up here, and Walter Brower, Executive Director of High Schools.

[00:25:06] if Smith County would check their certificate and see if it's the

[00:25:32] incorrect one is it is correct okay I think somebody must have the wrong certificate because I don't see yours but we're gonna hand you this one and we'll figure it out at the end like a block we do in school okay my mistake

[00:26:07] good these two are out of the water I think okay York County Region 2 Bethel Manor Elementary School, Superintendent Dr. Victor Chandor and Principal

[00:26:21] Christina Wagner, and last but not least St. Andrew the Apostle, Principal Mary

[00:27:07] Baldwin. The board's going to take a brief pause here so that we can go with all of the award winners out into the hallway and take some pictures please. So

[00:27:47] if you are an award winner or have been recognized this morning please meet us

[00:27:51] in the hallway. Thank you. The board would like to now welcome members of the

[00:42:16] Virginia Department of Education's aspiring special education leadership Academy to the meeting today as guests members are from cohort 17 meaning this is the 17th year of the Academy which was established in 2008 with the purpose to influence the positive outcomes of Virginia students with disabilities by helping to identify and prepare potential leaders for future administrative positions in special education. As of August 2024, approximately 440 individuals

[00:42:48] have participated in the ASELA. Each year brings a new heavy volume of applications who are seeking to be a part of this exciting leadership and development opportunity. The board would also like to recognize Mr. Doug Cox, who after decades of leadership with the department announced his retirement as director of ASELA we are so grateful for Doug for his legacy of service and leadership across the Commonwealth and the agency the board is

[00:43:21] so pleased that Miss Angela Neely will serve as the next ASELA director Angela is a long time Virginia educator experienced director of special education and a mentor and an allied professional partner. Her experiences and leadership are highly complementary of ASELA's goals grounded in the Council for Exceptional Children's competency standards for special education administrators. The board looks forward to the continued

[00:44:00] meaningful work of ASELA and the department's collaboration with George mason university so if you all would rise so that we can recognize you at this time thank you so much stated in the board's bylaws it's the pleasure of the board to accept public comment on all matters related to public education in

virginia before we begin our public comment today i want to share a few comments about the manner in which public comment will be conducted

[00:44:38] i ask that you model professionalism dignity and respect for others as you share your thoughts today as adults it's important for us to model civic respectful public discourse for our students and the children who are in attendance today or might be watching online on our live stream when you begin please provide your name role or affiliation and where you live in virginia all remarks must be directed to the chair not to any other individual speakers will have three minutes shown over here on the computer screen on the table you'll notice that a timer on the screen

[00:45:15] will begin at three minutes in green at one minute the screen will turn yellow the screen will turn red when time is up at that point please close your remarks promptly speakers may provide copies of their comments to mr joe crook down in the front next to the microphone joe is the department's regulatory and board coordinator all written comments received during the public comment period will be collected and provided to the board as soon as possible you may also email a copy of your remarks to the board at boe at doe.virginia.gov and it looks like scott

[00:45:54] braebrand is up first followed by kathy halverson president president creasy dr coons and members of the state board of education good morning i'm scott braebrand executive director for the virginia association of school superintendents and i'm here today to bring an update on several items that that have been before the board or are currently before the board.

[00:46:17] Since you held your final vote on the new performance and support framework, we want to express our appreciation to Dr. Coons and her staff for her willingness and their willingness to go out to each superintendent region and share in greater detail the specifics of the new performance and support framework with our superintendents.

[00:46:37] We've had a lot of good dialogue and feedback and we look forward to continued engagement as this framework is implemented. We know this framework along with the new English language arts standards and the new math standards as well as the implementation this year of the Virginia Literacy Act is a lot at one time for our teachers and principals and school staff.

[00:46:56] Anything the board can do to continue to recognize this context is very much appreciated. We also want you to know that we're diving into the new 3E framework as part of the new support framework. At our fall conference on this coming Monday, we actually have Todd Oldham, the executive director of VOWE, coming to share the new high-wage, high-demand database that will help our superintendents drive and better align their career and technical education courses using real-time workforce data and therefore enhance workforce development.

[00:47:29] We're very excited about having Todd come and join us. Superintendents are also busy reviewing the new cell phone guidelines from the governor, And superintendents will be sharing best practices with each other around the cell phone guidelines at our fall conference as well.

[00:47:45] Finally, we want you to know that today you are voting on approving English language arts and math textbooks, and we appreciate you providing the support to our schools. We're pleased with the English language textbooks, and we're hopeful that there will be more math textbooks to choose from in the coming months as you continue your review.

[00:48:03] Again, thanks for all you're doing, and we look forward to your and our continued partnership with you in the months ahead. Thank you. Thank you. Kathy Halverson, followed by Candice Lucas. Kathy Halverson's not here.

[00:48:20] Candice Lucas, also not here. Wendy Little, Hammy C. Christina Nadanova, no.

[00:48:42] Jackie Thurman. Good morning. Jackie Thurman, Prince William County Schools. I'm a parent. Multilingual disadvantaged and disability needs are different.

[00:48:59] different disabilities are different, and different combinations of disabilities are different. Therefore, different SPED students need different interventions to learn to read. Until now, IEP teams were empowered under IDEA to make critical intervention choices with full knowledge of each child's abilities and needs.

[00:49:17] My son's neuroeducational evaluation states that he needs an Orton-Gillingham system conducted with fidelity and with great intensity. Carl has a normal IQ and full ability to learn to read, but it is complex to get through his four disabilities, which includes specific learning disability and reading and ADHD.

[00:49:35] Under the Virginia Literacy Act, the only currently approved grade three and above tier three Orton-Gillingham curriculums are Lexia and Spire. I cannot replicate an IEP meeting here, but if my child could learn to read from an app such as Lexia, he would be fluent already.

[00:49:50] The approved Spire fourth edition only goes up to level six, unlike the unapproved third edition, which goes up to level eight. Both editions involve 10 transitions within a 45 minute period, which works against both my child's autism and his fifth percentile processing speed.

[00:50:06] We are out of VLA options to meet his instructional need and should not be forcing a square peg into a round hole when the I in IEP is for individualized. Two months into the school year, my child is regressing and irreplaceable lost academic time continues to march on.

[00:50:24] I have talked to multiple teachers, school and division leaders, SPED, and other VDOE representatives. no one feels that they can authorize any deviation from the VLA curriculum list which brings me to Richmond today. Sunday System 1 is an approved tier 3 OG intervention for phonics but is K-2. I am asking for Virginia Board of Education president member or delegate signature on my submitted waiver letter to allow my child to use Sunday System 2 for phonics as a continuation of an already approved curriculum and which has been submitted in the grade 6 to 8

[00:51:00] cycle. Please do not make Carl wait for months. Every single day that goes by impacts his ability to learn in every subject. 181,000 Virginia students are in special education. Given time, I've provided a separate list of recommendations to better meet our most academically vulnerable children's literacy needs. As bed parents, our question is not whether our child will attend an Ivy League college or a state school. Our question is whether our child can one day live independently and productively, which for Carl and many others is a function of intervention match and time. Reading is key to

[00:51:38] unlocking every door. Please sign Carl's waiver letter today to enable him to move forward and avoid further regression. Please help all of our Virginia SPED students learn to read. Thank you. Thank you. Amy McCour followed by Jean Sokoloski.

[00:51:56] Good morning President Creasy, Vice President Hanson, members of the Virginia Board of Education and Dr. Koons. My name is Amy McClure and I am a at-large member of the Virginia School Board Association's Board of Directors and a school board member for Lunenburg County. I am here today to address the vast needs that our school divisions have around school infrastructure and modernization. In 2022 the Virginia General Assembly created new school

[00:52:32] construction grant programs and made changes to the literary fund that allowed school divisions greater access to state financial assistance for school construction and modernization. VSBA appreciates the actions of the Virginia Assembly and applauds the State Board of Education and the Department of Education for their swift processing and approval for the disbursement of funds funds for these critical infrastructure projects. The demand for upgraded infrastructure for school divisions remains high across the Commonwealth. VSBA is optimistic that lawmakers will add

[00:53:11] additional funds to the school construction grant programs when they convene in January of 2025. We ask that the Governor, the Senate of Virginia, and the Virginia House of Delegates strongly consider the request for additional payments to the school construction grant programs as they develop their budget proposals in the weeks and months ahead I appreciate this opportunity to speak with the board today as you continue the important work of addressing the school infrastructure needs of Virginia's school divisions VSBA cannot stress enough the need for additional resources

[00:53:48] including tools that allow localities to raise additional revenues with voter approval VSBA will continue to advocate for these resources so our school divisions can provide our students with the necessary facilities for a world-class education. Thank you for all that you do for our students and we wish you a wonderful October board meeting. Thank you. Dr. Gene Sokoloski, please,

[00:54:17] followed by Judy Simmons. Dr. Gene Sokoloski, Woodbridge, retired. I am again notifying you of two serious matters and I am again asking you to act on them. The first is the falsification of two of the four victim groups of genocide that are specified in the 1948 Genocide Convention. This falsification was published in the 2015 standards of learning and remained there for seven years. It was also in the first two drafts of the 2023 standards. The

[00:54:53] 1948 Genocide Convention specifies the four victim groups of genocide and the five acts that constitute genocide. It is international law and the United States is a signatory. The four victim groups of genocide are ethnic, national, racial, and and religious. However, the advisory committee decided that ethnic and national groups must be removed and in their place inserted cultural and political groups. Poles are an ethnic and national group and Romani are an ethnic group. It is historical fact that Hitler targeted Poles and Romani for genocide and committed genocide against them. So why did someone

[00:55:31] on the advisory committee want to prevent Virginia's teachers and students from learning that Poles and Rahmani were also Hitler's genocide victims. My 26 August 2022 emailed to you reported this falsification, as did my 12 March 2023 emailed to you.

[00:55:50] My public comment for the 25 July board meeting and for today's meeting does the same and identifies the responsible individual. Your Department of Education ladies and office should have provided my two notifications to you and I trust that it will provide both my public comments to you. This is clearly egregious misconduct. The Department of Education appointed a Commonwealth citizen to a position of public trust who violated that trust by deliberately concealing the genocide of Polz and Romani and did so by falsifying two of the genocide conventions for victim groups. I again ask you

[00:56:28] to investigate this matter and make your report of findings public. The second serious matter is directly related to the first. In the 2023 standards of learning, you specifically require the study of genocide, but the only World War II genocide cited is Hitler's genocide of European Jews. This is discriminatory, and I explained why it's discriminatory in the four documents I just cited. The relevant question is, is the deliberate exclusion of Poles and Romani as Hitler's genocide victims racist? My public comment handout instructs you on how the applicable standard

[00:57:04] of learning can be easily resolved it is important to remember that in this age of information ignorance is a choice and the greatest ignorance is rejecting something you know nothing about consider also this old hebrew adage which says a half truth is a whole lie thank you thank you

[00:57:29] judy simmons followed by jennifer slack is judy here jennifer good morning i'm jennifer slack from from Charlottesville, Virginia, and I'm a program owner and an early childhood educator.

[00:58:03] I'd like this board to consider taking a new stance on the supervision needs of our youngest children. The Department of Education inherited the current childcare licensing standards from the Department of Social Services, and they are extremely restrictive. This draft is stating, is starting the process of moving away from the rigidity that VDOE inherited.

[00:58:23] For example, the new regulations allow school-aged children to self-administer medication under the supervision of a teacher, and children starting at age five can assist in applying their sunscreen. However, the supervision requirements remain suffocating.

[00:58:38] The current regulations and this draft regulations require children under 10 to be supervised by sight and sound at all times. These standards consider infants, toddlers, preschoolers, and five, six, seven, eight, and nine-year-olds to need constant supervision by sight and sound while in childcare.

[00:58:54] The draft before you further restricts educators and children as described on the front page of the document I provided. I do not believe this is the direction this board wants to go. I think the board could refocus on regulating only what's essential for keeping children safe and healthy.

[00:59:10] In the document I provided, I list multiple standards that can be stricken. There are some new and unnecessary, and there are others that are simply duplicative. On page two of the document, I invite the board to consider changing the supervision requirement to break down supervision into three categories.

[00:59:26] Infants and toddlers can keep the current standard of constant sight and sound supervision, and the board can add new language for our preschoolers that include all school-aged children in the current language offered to children only over 10. If you have children, you know that by age three, most children can perform small tasks out of sight.

[00:59:46] You no longer need to foul preschoolers around the way you did your crawling and toddling little ones. This separation is actually an essential part of learning and growing. Children in our public schools, their homes, and in any other context are not required be under constant sight and sound supervision of an adult. I propose we use the language of the National Association of the Education of Young Children accreditation standards and allow preschoolers to be in sound only supervision for up to five minutes provided the other safety measures are in place. This would allow preschoolers to perform tasks such as getting a book from a classroom across the hallway or retrieving a special item from a

[01:00:23] hallway backpack. This flexibility to allow children over three into sound only supervision for short periods would make a difference for children and for their adults it is safe for teachers to press to scaffold preschoolers growth and learning in the protected context of our early childhood environments you have an opportunity to truly move towards the governor's mandate and move early childhood education in the right direction when the motion is made later this afternoon to move these standards into the proposed stage you can offer an amendment to adjust the language as outlined in the documents i provided thank you all for all you do to oversee

[01:00:58] the Department of Education. Thank you. Miriam Skadron followed by Shannon Wagner. Hi my name is Miriam Skadron and I am an infant and toddler teacher in Charlottesville Virginia. One of the increased regulations in the new draft of child care standards includes new requirements for

[01:01:37] visual media use by children. The current regulations have no restrictions on children's media use and I agree that we should limit children's media use but this regulation is the worst of both worlds. It limits providers, while still leaving parents in the dark, about what media their children are consuming. Because of the way that it is written, it allows for significant visual media use in early childhood programs, up to two hours per day starting at 16 months old. This is not in the best interest of our children and also increases regulations.

[01:02:06] Over my nine years of experience in early childhood programs, I have learned that visual media can be a very helpful tool to promote learning and social bonding. Virtual field trips open up lots of new opportunities and there is a lot of visual media specifically geared towards encouraging gross motor movement in children which is something many children need more of but in order for those things to happen media use needs to be intentional and not a last minute crutch take for example a teacher turning on a cartoon when they have multiple upset children this is not in the best interest of children and can actually harm their social emotional development when it's used as a replacement for meeting their emotional needs i propose that rather than creating

[01:02:46] a time limit for children's media the board should require programs to communicate with families similar to the way that we do when children are taking field trips on field trips and early childhood programs parents can opt into individual events or they can write a blanket permission from which they can withdraw at any time this same language can be offered for visual media use and puts control in the hands of parents rather than the hands of regulators parents will be aware of the media their children are consuming and will have the option to opt out it will reduce the regulatory burden when providers and parents are on the same page about media use, and increase the regulations where parents deem it necessary. Draft language is on the paper that I provided to

[01:03:24] you. I will end by adding that the best way to reduce unnecessary use of visual media in child care settings is to reduce ratios so that providers have the capacity to meet the emotional needs of the children in their care. The revenue benefit of the new regulations is assuming that all programs will get permission to operate above the state's maximum ratios, which will greatly decrease the the quality of care provided. In addition, unnecessary regulations around the physical environment and cleaning procedures increase the burden on providers and paired with higher ratios increase the likelihood of providers relying on visual media to get through the day. I will not be here this afternoon since I have a group of wonderfully rambunctious one-year-olds who are

[01:04:02] expecting me back in time for nap. I hope you will consider making the friendly amendment I have drafted on the papers I provided to you. Thank you for your time. Shannon Wagner followed by Caroline Wagner. Hi, my name is Shannon and I'm an infant and toddler teacher from Charlottesville,

[01:04:37] Virginia. The economic review form you have received is claiming that this regulatory change will provide a potential for an additional net revenue of $35,902. This is misleading. The revenue benefit of $37,600 is based on increasing staff to children ratios. This is inappropriate to include. It is inappropriate to include because it is already allowed by the current regulations, and it is largely inaccessible to programs.

[01:05:09] This increase in the staff-to-child ratios was allowed during the pandemic if programs opted in to the increased ratios and communicated with families. 200 of 2,600 programs opted into this. This is less than 10% of programs.

[01:05:24] Those programs may have realized this increased revenue as a result. However, 90% of programs did not opt into this increase because many programs like mine operate below the state mandated ratios to better serve the children in their care.

[01:05:40] Increasing ratios is ill-advised. Doing so and claiming that it will save providers money is misleading. The board should demand that the department provide accurate documentation to support their decision making. While this regulation does move towards reducing some of the burdens for providers, it actually will cost providers more to provide care under these new regulations.

[01:06:04] The board should consider that this regulatory change is actually costing $1,698, at least based on the estimates of $35,902 less $37,600, which was already realized by 10% of programs opting in and never realistic for 90% of providers.

[01:06:25] As you consider this regulation, I want you to have accurate numbers in front of you and know the true burden of this change. Consider me and the others who have spoken today and reduce that regulatory burden as you've been asked to do. I've provided a full track changes version of the regulation before you with everything I believe could be removed or changed without sacrificing the health and safety of our children. When it comes time for you to make a motion on the child care standards, you could move to use this track change version and exercise your powers as a board to oversee this department and establish minimum standards from which providers and parents can make early

[01:07:01] education decisions thank you for your time thank you caroline wagner followed by dan zacharias good morning i'm caroline and i work with preschoolers out of school in charlottes hill today i'll speak about climbing equipment and soap young children need access to physical challenges indoors and outdoors in their early childhood programs research shows that physical movement is essential for young children's growing bodies and minds the draft regulations before you attempt to better articulate the definition of fall height and the requirements

[01:07:40] of climbing equipment in early childhood programs, but they're still unclear. Fall height, as defined in the new standards, means the vertical distance between the highest elevated play surface on play equipment designed for standing, walking, crawling, sitting, or climbing, and the protective surface beneath it.

[01:07:58] Use of the word "climbing" here is not clear because climbing can be done with multiple parts of your body. Including this word in the definition reduces clarity. If a part of a piece of equipment is being

used for climbing, is it measured from the child's feet or from their hands. How we measure equipment impacts if it's allowed and what safety measures are necessary. All other pieces in this definition are clear, as they have to do with the child's feet or their bottom. Climbing is unclear and should be stricken from the definition. The description of use zones on line 772 does not describe what equipment it is referencing. I propose striking that clause. If it were to apply

[01:08:35] to outdoor equipment, it would contradict the lines 768 through 771 and it's impractical for indoor use. Please take a moment to flip to the other side. The new standards specify that soap must be liquid, and the current standards merely require soap. I would wager that 99% of the programs, 99% of the time, already use liquid soap, and there's specific needs and context in which bar soap is simply a better alternative. For example, we have a child who can only use bar soap due to their sensory needs. Liquid soap does not work. We use bar soap at our outdoor sinks

[01:09:11] because liquid soap will freeze in the wintertime. Changing this regulation to liquid soap only serves to increase the regulatory burden on those cases when liquid soap is already the standard practice. All of the proposals I've described are outlined in a friendly amendment on the bottom of the paper that I passed and could be easily modified prior to this proposed stage so that the public can comment. I know you have many, many more things before you and that early childhood programs are small in the scope of the work that this board has to do. This regulation will impact 2600 early childhood programs many of which are small businesses like our

[01:09:48] school that number represents tens of thousands of teachers and hundreds of thousands of children I urge you to read the details of this regulatory document with a lens of trusting teachers and reducing regulations when you're able thank you thank you madam chair and members of the board good morning I'm Dan Zacharias director of the Old Dominion Association of Church Schools and since madam chair said state where you're from I don't know if I've ever

[01:10:25] told you I'm from the beautiful Shenandoah Valley and have lived there for 34 years and and I love it I want to just make a brief statement to you about what we feel is a is a harmful fallacy in the discussion around early child care and relative safety between licensed centers and religiously exempt centers when we get into policy discussions all of our church run preschools and daycares operate with the religious exemption and we tend to be characterized as unsafe by default simply because we're not licensed and we

[01:11:05] believe that that's an important fallacy if you studied a Department of Social Services data and this has been true consistently true for many years where they document founded cases of child abuse in out-of-family settings, and they segregate the data by different kinds of settings, including licensed childcare, religiously exempt, and others.

[01:11:31] You'll find that a founded case of child abuse is less likely to happen in a religiously exempt center by a factor of five. So by that metric, we're safer. Now, the good news is these cases are rare in both settings.

[01:11:47] not trying to characterize license settings as unsafe but to say that we are unsafe by default is a fallacy if you study the newly published data from the Department of Ed on serious physical injuries and death I think we've got so far one complete year of data but that shows religiously exempt centers to be safer by a factor of three again good news it's rare in both settings but to

[01:12:20] claim that religiously exempt centers are unsafe by default is a fallacy so the lesson I believe one lesson to be learned from this is that increased government control does not necessarily automatically translate to greater child safety I don't want to be presumptuous on my predecessors at this mic but I think I heard things consistent with that idea and their concerns about increased regulation so that's our primary concern is that you consider that message of relative safety and policy deliberations in the future. Thank you for listening to our concerns and thank you for your service to our

[01:13:00] Commonwealth. Eileen Chalet. Good morning Eileen Chalet. I'm the mother of a daughter with a disability in Fairfax County. At the last meeting Ms. McPherson and Ms. Holden asked the right question. What are this board's authorities and responsibilities when it comes to special education? But I'm here today to to urge you to ask that right question to the right person. This board needs

[01:13:35] objective and independent advice about what your duties are, not conflicted advice. Here's an example: 34 CFR 300.227. This is federal law idea. It says, "An SEA must use the payments that would otherwise have been available to an LEA to provide special education and related services directly to children with disabilities if the SEA determines that the LEA is unable to establish and maintain programs of faith that meet the requirements of this part," unquote.

[01:14:03] Plain language translation, if VDOE finds that a school division is not providing an appropriate public education to a student with a disability, the state must take that school division's IDF funding and use it to provide special education to the student directly.

[01:14:20] This is a mandatory duty under federal law, an SEA must, not may, must. This mandatory duty exists so that students aren't left without an education for years while a school division drags its feet through the court system. So when Wendy and Kathy and all these other parents come down here invoking Virginia Code 22.1-214, that's the section of the state code that implements this section of the Code of Federal Regulations.

[01:14:47] It places this mandatory duty under federal law on you, the State Board of Education. So I hope you're asking yourselves right now why these poor parents have been coming down here for three years asking you to do your mandatory duty under federal law.

[01:15:03] And in those three years, Samantha Hollins couldn't take two minutes to give you the explanation that I just gave you. Samantha Hollins has an enormous and obvious conflict of interest in the explanations and more importantly the lack of explanations she provides to this board.

[01:15:21] Now I personally have no stake in this section of the code. daughter's in school in Manassas right now. I'm here because the Commonwealth's actions and inactions are endangering our federal funding. Actions and inactions, plural. Remember, this is just one example. There are many more failures going on, and the U.S. Department of Education is in federal proceedings right now to take away Michigan's education funding for nearly identical failures.

[01:15:51] still by all means do not listen to me do not believe me as long as you don't listen to or believe samantha hollands either please madam chair seek out independent and objective advice before it's too late thank you okay is there anyone else that would like to that did not sign up for public comment that would like to speak if so you can line up with the microphone okay

[01:16:25] then we will close the public comment period thank you um let's move on to the consent agenda please Is there a motion to waive first review and approve the items on the consent agenda?

[01:16:51] Okay. Motion made and seconded. We'll move on with the vote. Dr. Bryce? Aye. Mr. Rotherham? Mr. Hanson? Dr. Northern? Ms. McPherson? Ms. Kilgore? Aye. And chair votes aye.

[01:17:08] Okay. Moving to item E, final review of technical revisions to the bylaws of the Virginia Board of Education and policies regarding remote participation. Mr. Chapman?

[01:17:33] - Dr. Northern.

[01:17:51] - Six, says the board, the new track version says the board will have a published agenda for all public meetings. And the superintendent of public construction will create a draft agenda. And that final decision on the placement of items and final improvement of the draft agenda will be made by the president.

[01:18:11] The part that's stricken is items may be placed on the agenda by the superintendent of public instruction or any member of the board to the president of the board. So my motion is to reinstate the stricken item, so restore it to the original version of Article 6.

[01:18:37] Okay. Point of order, can we get that repeated? Yes, so what would happen is if you are on the lined version, it would be line 212 through 214, which would end with the agenda in red.

[01:18:58] Do you see that? So the second sentence, I don't think you need to amend. - Is that right? - That is right. - Okay, so it would be just that first sentence in lines 212 through 214.

[01:19:16] So the stricken items are actually 212 through 213, and you would actually strike the red underlined language and reinstate the original language. But the additional amendments on 214 and 215 would remain.

[01:19:39] - Is that understood, Jim? Yes. I mean, that's what I was proposing. Yes. Okay. Does anybody object to that? Okay. So is there a motion to approve the proposed technical revisions with Dr. Northern's amendment, the revisions to the bylaws and policies in attachment for with Dr. Northern's amendment?

[01:20:07] Do I have a motion on that? Second. Okay. Any discussion? We're good. Anybody have a question? All good. Okay.

[01:20:23] Dr. Bryce? Aye. Mr. Rotherham? Mr. Hanson? Dr. Northern? Aye. Ms. McPherson? Aye. Ms. Kilgore? Aye. And chair votes aye. Okay. Thank you, Mr. Chapman. Deputy Superintendent Cooper, item F.

[01:20:44] Good morning, President Creasy, members of the board, and Superintendent Coons. Chapter 171 of the 2024 Acts of the General Assembly directs the board to do two things.

[01:21:01] One was include severe allergic reaction awareness in the 9th and 10th grade health standards of learning. And two, review a video training produced by the students at McLean High School in Fairfax County and consider whether to approve that training or develop similar training for use as the Severe Allergic Reaction Awareness Training.

[01:21:20] The board reviewed the training video from Fairfax County this spring, and then the board reviewed the allergy awareness item for first review at the September board meeting. The Superintendent of Public Instruction recommends that the Board of Education authorize the inclusion of the video as an available resource in the Severe Allergy Awareness Guidance Document to be generated by the VDOE Department of Behavioral Health and Wellness. As a board if you all remember we reviewed this video and

have considered its contents. Is there a motion to authorize the videos inclusion as an available resource in the Severe Allergy Awareness Guidance Document to be

[01:22:00] generated by the Virginia Department of Education? Any discussion on this item? Okay Dr. Bryce?

[01:22:19] Aye. Mr. Rotherham? Aye. Mr. Hanson? Aye. Dr. Northern? Aye. Ms. McPherson? Aye. Ms. Kilgore? Aye. And Chair votes aye. Okay. Item G, final review of proposed standards for licensed day centers. Yeah, can we, I'm sorry, I'll let you guys get ready. We're being requested for a short break, so can we give you seven minutes? Thank you. Moving on to item G.

[01:35:18] Excellent. Good morning. I'm Jenna Conway, Deputy Superintendent for Early Childhood Care and Education at the Virginia Department of Education. I'm also joined here this morning by Jeff Williams, who is our Assistant Superintendent for the Office of Child Care, Health, and Safety. I am pleased today to bring to the board for final review the standards for Child Day Centers.

[01:35:41] What I'd like to do this morning is take a moment to walk us through the process that's gotten us to this day, talk about the feedback along the way, and then talk about kind of at a very high level, the kind of key – some of the key shifts in the proposed regulations.

[01:35:59] I'd also like to acknowledge and appreciate the feedback that we received this morning via public comment. I know coming from centers across the state, our child care educators and leaders have incredibly busy, important jobs.

[01:36:16] And to make the effort to come here, and we have throughout this process tried to solicit feedback from providers, educators, families, and others, as I'll describe in a moment. So what you have in front of you today for final review are the standards for child care licensing for the child day centers.

[01:36:37] As Mr. Zacharias noted earlier, this does not apply to the religious exempt programs or to family child care. I'm going to take us back in time for a moment to 2020 and the passage of the early childhood law, which moved oversight of care and education out of the home to the Department of Education, required the measurement and improvement system for publicly funded programs, and equally important, created the Early Childhood Advisory Committee, and this was a in code, a statutorily set forth advisory body to this board.

[01:37:12] This particular committee came out of the compromise at the General Assembly, recognizing that it was a pretty significant shift for the Board of Education to take responsibility for child care, family child care, oversight and support of an addition to kind of preschool and early childhood special education. That body and its members are spelled out in the code and we worked very closely with the board to have folks apply to be a part of that for the 22 slots. I believe at first inception we received over 160 applications and it was truly set up, there was some back and forth with the General Assembly on who the members would

[01:37:49] be, but truly set up to be broadly representative of the early childhood sector, so that when important regulations like the Child Day Standards were to come in front of this body, this body could have confidence that there had been thorough review by those directly affected.

[01:38:05] At that time, there was also an expressed desire to make sure that from top to bottom that the Department of Education would review the Child Day Center regulations. It was not possible to change

them at the time that they moved over on July 1st of 2021, but immediately upon transition, we were tasked or asked with running that process.

[01:38:26] In December of 2021, we went to the ECAC, and the ECAC said, we can't kind of meet for hours on this, but we would like to designate a work group that would work on that. That work group convened and met, I believe, throughout the period from January of 2022 to March of 2023 for more than 20 hours and literally went line by line through the regulations that we've inherited from the Department of Social Services and made a set of proposed changes.

[01:38:59] That work group included YMCA, Family Day Homes, six providers, our training and technical assistance, partners who support children with special needs, higher education, the American Academy of Pediatrics, as well as a teacher, child care aware, and those who provide training to child care programs.

[01:39:19] So trying to make sure that it was also representative. Upon completion of that process, and with huge appreciation to anyone who might be listening, who was a part of these 15-plus workgroup members, dedicated, again, as I noted before, more than 20 hours of time, we, as you all are grappling with this, had this premise that we would recognize, that we would hear very many different perspectives, and that what these regulations do represent in some form or fashion, when you're talking about licensing 2,600 plus sites, some of them do represent a compromise in terms of how do we balance between our own perspective on how we keep babies, toddlers, and preschoolers healthy and safe, but also make sure

[01:39:57] that we're not overly regulating our private businesses, many of which are smaller, smaller private entities. Upon completion of that work group process, and this was just at the Nora stage, I should note, we then went to the ECAC. I believe President Creasy was, might have still been a member at that point in time and had one of our, to date, our longest meetings.

[01:40:19] So it was a full day meeting in which we went through the regulations. All of us remember it vividly because there was a mid-afternoon fire drill in which all members of the ECAC walked out 22 flights of stairs. And fortunately, we're a top priority for the elevator coming back so that they did not have to walk up 21 flights of stairs.

[01:40:36] But in all seriousness, we met extensively, as you might imagine, that there were strong feelings associated and everything from some of the things that were raised this morning as it relates to media to what do we do and think about ratios and group sizes, you know, how do we feel about sort of everything from supervision to hand washing to, you know, conversations about, you know, when do kids need to stay home and how do we balance between the need to keep other kids healthy as well as educators, but also wanting kids to be able to participate

[01:41:09] much as impossible as much as is possible in their early childhood experiences upon completion of that meeting the ecac endorsed with changes so they made a set of changes to those the proposed regulations we brought them to the board in june of 2023 at the nora stage so it's not often at the norah stage that we put out a whole set of draft regulations but we were advised by our our board folks that that would make sense because this was such a big deal right because these are so extensive and affect so many um providers and educators across the state uh so

[01:41:49] they went out the nora went out in june of 2023 or sorry went out in january 2024 i believe received over 240 public comments um uh jeff and the team went through reviewed those public

comments we We made sure they were available to the advisory board as well, and then came back and reviewed the revised regulations in May of this year before bringing them to this body in July.

[01:42:16] You received this for first review in July. We received some feedback, even between May and July. We don't typically make changes without taking it back to the advisory committee, so we took it back to the advisory committee.

[01:42:31] In September 2024, there were strong feelings on some of the shifts, and I will note that we had a vote. And so there was a vote, and there have been times where these have been consensus decisions with the ECAC, and there have been times where there have been different feelings even amongst the ECAC.

[01:42:49] And so when those situations occur, we do a vote, and so some of the shifts that even reflect changes from July to present reflect the input of the Early Childhood Advisory Committee. The draft in front of you today reflects, again, you know, work group, 20-plus hours, three discrete, you know, meaningful meetings with your early child advisory committee, public comment that was received on the NORA, and sort of a unique NORA in terms of having the full draft available for the NORA, and still, I think, we'll go out for public comment

[01:43:25] another time, again, you know, before we even begin to talk about implementing these shifts. So it was a very lengthy process, and again, we continue to be open, as we demonstrated in the last 60 days, if there are things that the ECAC did not catch, if there are things that were missing, and we expect that we will get public comment, take it back to the ECAC and make sure that anything that is reflected in the final regulations fully reflects the perspective of that body as set forth in code.

[01:43:57] As I noted earlier, you know, this is to strike a balance on how we can improve compliance, reduce duplication, ensure that we keep babies, toddlers, preschoolers, and kids in camps and after school safe, comply with laws where appropriate, and then also, you know, reduce burdens, you know, to the greatest extent feasible.

[01:44:24] That's a lot of priorities to balance, and again, I think we feel like at this point in time, this reflects the best possible compromise, but we also understand, you know, as raised this morning, that there might be ones where folks sort of see it differently than we do, but we do feel like these regulations represent a compromise in that way.

[01:44:44] We also think that there are some of the compromises, right, are on things where we have provided flexibility, and as I think was noted this morning, providers may or may not take advantage of that, And so I think kind of example would be the ratios or screen times. There are programs that say we do not want to use it at all.

[01:45:00] And that sentiment was raised in our programs. There are other folks who say we really like showing movies and, you know, being able to kind of provide, you know, some exposure to some content. I think one of the really important pieces, and, you know, we can strengthen, you know, our supports and guidance in this way, is that each of our parents, for the most part, chooses these programs.

[01:45:26] And for some of the things that are different, so like, for example, with the ratio flexibility, the only hard and fast requirement, if you were going to go sort of to the higher ratios, is that you're informing your parents, right? And so that, you know, and I think for whether it's ratios or screen time or some of

these other practices, making sure that parents are informed is also very important and part of that process.

[01:45:50] The tradeoff there, right, is when you have to have a policy and inform parents of that that creates a little bit more bureaucratic work for providers. But we think that's very important in terms of parents as children's first and most important educators in making sure that there is clear communication because there are many spaces, you know, in these regulations that allow for a range of practices across our 2,600 sites across the state.

[01:46:16] Overall, these regulations are of a shorter length, and we have tried to reorganize them to make more sense, to be more clear. This is helpful, we think, not only for the field, but for our inspectors who are out, so that we don't have sort of discretion, that we don't have sort of disagreements about interpretation.

[01:46:36] So we've really tried to improve that. We know that we can always get better at that, too. And as we think about even some of the supports for implementation, When we do implement, this would have to come with training and guidance to make sure that everybody can understand all of the different expectations.

[01:46:53] We have also removed superfluous requirements or things that had to do with, like, hey, this is how you could run your business or your program, and really focusing on the health and safety elements that matter most. And we've also preserved grandfathering of causes, I think, that created some great concern.

[01:47:12] And this was what the vote of the advisory committee was about, but really trying to strike this balance and make sure this is sort of both keeps kids healthy and safe, but also is reflective of the private providers who do this work every day. There's a few new requirements in terms of what's expected.

[01:47:32] Some of that comes from what we know now from the research. Some of that comes from what we've seen in terms of the ways in which children have been harmed in recent years. This particularly relates to things like related to swimming and water practices, surfaces as well there.

[01:47:49] And some are things that are required because of the law. And so when you think of some of the most expensive elements of these new regulations related to EpiPens and lead testing water for lead, those were statutorily required and ultimately needed to put into the regulation.

[01:48:08] Lastly, we were asked to do, as all regulations, a cost impact. And again, I think this is a tough one. If you imagine across 2,600 sites that operate in very different communities and settings across the Commonwealth, how do we quantify these costs in a way that represents an honest and meaningful average?

[01:48:32] We used the same methodology, so we went back to the way in which we calculate cost of quality. This is how we set the rates for a child care subsidy program. It has been federally approved. We use nationally experts and try to kind of go, again, line by line through the red line changes, quantify a cost, go to Amazon to get an estimate of a price of something, look at what we thought this meant in terms of staff time, assigning an average kind of hourly cost for staff time.

[01:49:01] I think to the point made about the ratios, that is a fair one in terms of if you don't choose to make that change, that there is not the same shifts in revenue. But that is true for many applications of

these in terms of whether you decide to have your children engage in water play or swimming, right?

[01:49:24] The extent to which you, you know, how much outdoor equipment you want to have. The other, some of these are, I think, are very clear. You know, the EpiPen is probably a sort of more simple calculation. Some of these are much more subject to interpretation. So I will acknowledge that this represents a best estimate and that we are sort of forced by the structure of the cost impact forms to kind of put them on one page, but it truly is a menu.

[01:49:50] And that makes it much harder to kind of understand the cost impact of this. We expect there will continue to be public comment on that as folks look at these numbers and estimates and help us understand what it actually means for the kind of current 2,600 sites.

[01:50:06] But I will give an example of something we did shift. We had removed the grandfathering of what was a sort of a square foot provision, and that was proved to be not what the ECAC wanted to do. The cost, the practical impact became really a factor there.

[01:50:25] And so I say that not to rehash that, but basically to say that certainly the ECAC has also factored in the potential cost, revenues, cost of these regulations as well, but have also acknowledged just how difficult that is to do across 2,600 sites.

[01:50:47] So with that, let me pause and take questions, but we would ultimately recommend on behalf of the superintendent that the board receives some final review. - Are there questions or comments for Ms. Conway?

[01:51:03] Dr. Northern. I'm just wondering, I mean, some of these things are more substantive and some are not. So let me start with the little less substantive one in my view. Is there flexibility for a center to use bar soap instead of liquid soap?

[01:51:19] Yes. So we do have a set forth in our regulation and code the ability to provide a variance. So if a center, again, has a compelling reason, they can also articulate how they are using that safely, that was not sort of the recommended best practice from the committee, but we do have the ability to provide a variance if the center wants to as far so.

[01:51:39] Okay. I think another issue, just I could use some clarification on, I feel like this issue of screen time is hotly debated, you know, what's the right amount, how much should they be exposed, does it need to be educational, and so on.

[01:51:55] Is there some flexibility here to provide guidance to these providers, such as we provide guidance the department provides to our k-12 schools absolutely and really appreciate the concerns raised this morning we did have a pediatrician in the work group i will say this was a very long and thoughtful discussion with strong feelings you know on all sides um it also is rapidly evolving dr northern right in terms of what we know and even how the aap recommendations have shifted at least twice over the last few years.

[01:52:35] We settled via compromise with the ECAC on sort of on the upper limits. I still think there is, you know, and we really threw out in our efforts to reduce these regulations, you don't provide a bunch of sort of best practice sort of in the regulations, right?

[01:52:52] This is sort of, these are the hard and fast, upper, sort of lower boundaries. So I do think it presents an opportunity, particularly on that topic, which is evolving more quickly than often our

regulations do, if you think about, we've been working on these for over two and a half years. And so I think the department can certainly, if this body would like us to produce some guidance on this that reflects the why, right?

[01:53:14] Why you would, you know, and sort of the impact on children. I think we could also provide some resources to come in and to be used with parents, because as I said before, the parents are aware of some of the screen time policies, But, you know, we can provide that guidance and some resources that reflect, you know, sort of the best practice in addition to just sort of the limits that are set forth in the ride.

[01:53:40] Thank you. Anyone else? Dr. Bryce, please? Yeah. Is there a hand? I'd like to move to amend the portion about liquid hand soap, just striking the requirement that it be liquid hand soap.

[01:53:56] I thought the public comment was, you know, compelling in that that's an onerous statement. requirement. Does anyone want to second that motion, or do we want to rely on the variant that Ms. Conway just talked about? Mr. Rotherham? I want to follow a proper procedure. If we need a second in order to have the discussion, but I'm not sure I'm comfortable. I have questions on that same issue. Okay. How would you, how do you want to receive questions, or? Go ahead

[01:54:32] and second so we have the ability to discuss. Okay, I'll second it. Courtesy seconds so can move to discussion okay discussion can you talk a little more about that Dr. Conway so I have the same thing and I'm curious on this in particular the example that was raised let's say hypothetically you have a student who might be like neurodivergent and the hand so I you said there's flexibility they can come for a waiver and then also can you so can you talk more about that to to Dr. Bryce's concern and then second where does this intersect if you have a student who already in young kids can, has a 504 plan or is in early IDEA, like where -- and so they

[01:55:12] might have an accommodation around something like that. How does that -- explain to us how all that intersects. MS. Absolutely. So the -- you would request a variance, right, and you could cite the -- you know, without naming any names or divulging, you know, privacy or confidentiality to kind of sort of indicate why you needed this.

[01:55:34] This was a discussed topic, right, with sort of some of the concerns around the cleanliness of the bar, sort of that soap was better. There were also concerns raised about, you know, use of plastic and too many plastics in these programs, right?

[01:55:50] So again, there was debate on both sides of, I guess, the aisle on this one. It just feels a little -- but that was the reason. For all of the variances, it's a simple form that you complete. It goes and is reviewed by our leadership team.

[01:56:09] And we recognize that if you're seeking that variance, it is normally for a reason. We look into that reason and can offer that. I think if you were to cite a 504, an IFSP, an IEP, that would make it a fairly matter of fact review for us.

[01:56:27] The other factor that is often used for variances is for like a sort of extraordinary cost factor, right? So if, you know, if, for example, there was no liquid soap in your area because you had just been, you know, affected by a hurricane or something like that, that is, again, another thing that Jeff and the team often review and provide approval for.

[01:56:46] And, Dr. Kahn, how fast was that? I'm a provider. I have a student with a situation like this. How, I mean, how long am I going to be potentially as a provider in limbo while this works its way through the process? two businesses? The allowable variance process can be done in a matter of hours in emergencies.

[01:57:13] Worst case scenario is there might be some back and forth. Some allowable variance that we've done takes hours of research, but there is no reason why it can't be done within a day or two. In most instances, it's done that quickly unless I'm out of town and can't sign it. But even in those instances, we have processes that can be done within hours if need be. Other questions, discussion on this particular item that Dr. Bryce has brought as an amendment?

[01:57:45] Members, I have a more general question, but I'll wait until we're done with this particular amendment. And based on this, as Conway said, I withdraw my second if someone else wants to second it. I'm comfortable there's adequate flexibility. And when the answer from staff is we're talking hours, I think we would defer to the common sense of our providers in sort of immediate circumstances.

[01:58:06] I mean, honestly, it just seems like an overregulation to require child care centers to apply for variants for something like just using a bar of soap. I have a three-and-a-half-year-old who can't pump liquid soap, so I can see why this would be a pretty common issue in child care centers.

[01:58:26] Since Mr. Rotherham withdrew his second, would anyone else like to second that motion? About striking the climate for damage of soap? About, correct. I've seconded that. Okay. Any other discussion on this before we vote?

[01:58:43] Okay, so we are, this vote is to strike the liquid soap requirement, and then we will vote on the final review status.

[01:59:00] Dr. Brice? Aye. Mr. Rotherham? No. Mr. Hanson? Aye. Dr. Northern? Aye. Ms. McPherson? Ms. Kilgore?

[01:59:17] No. And chair votes aye. that motion passes we will um strike the liquid hand soap requirement um are there any other issues dr northern i'd also like to make a motion that we um ask the department to provide guidance on media use like they do for grades k through 12 um miss conway do you believe that that requires a motion from the board or can you all just handle that on your own by direction what would you prefer about we can do either one we can we can we can take a vote and we can do it

[01:59:54] we will make it formal then um so does anyone second that okay may i have a friendly second i'd like to make a friendly second we actually broaden that because i think there's a number like one of my concerns i don't actually disagree on the micromanaging point that my colleague dr bryce made it's just i think there's a number of places in here and we could kind of go through and I'm leery to start second-guessing staff decisions, so could we just offer some guidance on not only on the screen time, but my amendment would be on a number on sort of major issues where there is opportunities for variants, what that looks like, just to make sure that

[02:00:30] providers fully appreciate the range of flexibility or how to access that flexibility, I guess I should say to be more precise. Yeah, I think that's probably worthy of broadening that so that we include that process of variants to be very clear so dr. northern would you want to specifically call out screen time or is mr. Rotherham's broadening of that maybe we can just be specific at screen time and other major and other major

[02:01:05] issues right so second amendment would be to or not I guess not really an amendment but an addition would be to provide ask the department to provide guidance on screen time and other major issues to discuss in particular the process of the variant perhaps other common issues I mean you guys know the ones that are going to come up you are in the discussions as you said with the group so you know the issues that you had people on both sides who had you know informed contested so I mean I'm leery to sort of identify them but I think you guys you guys have the expertise to identify what are major

[02:01:44] areas where this is going to come up please and I have a question about that does the department right does the department keep record of like the application for variances and which ones are approved and which ones are denied so that at some point the board can see yes because you know because there's a burden on so many smaller centers you know to write in for a variance and then they don't get it I mean it would be helpful to us to be able to see the period of time it took for them to get

[02:02:21] response and what the response was and then that would help us in terms of future regulations in case that we needed to modify something yep we can do that all right thank you please mr williams we actually what we did for these regulations we brought those allowable variants to ecat and explained some of the requests that we made uh and suggested we made were based on what people have passed a variance for in the past and built the flexibility into the regulation in these next so this motion requires the department to provide guidance on screen time and

[02:02:58] other common issues seen in variance requests to include specifics on the variance process is there any further discussion okay dr. Bryce hi mr. Rotherham hi mr. Hanson aye Dr. Northern aye Ms. McPherson aye Ms. Kilgore aye and chair votes aye okay now with those two

[02:03:36] amendments we have um unless there are further amendments further amendments okay um let's get the full motion on the floor for question um with those two amendments uh i would like to entertain a motion to approve the proposed revisions here with the amendments to the standards for license child bank centers.

[02:03:59] So moved. With a motion by Mr. Rotherham and a second by Ms. Kilgore, is there any further discussion? Mr. Rotherham. Yeah, I just want to -- I thought, Dr. Conway, you said something that was very interesting. I just wanted to make sure that we surface.

[02:04:15] These are programs of choice. Parents are choosing from a range of providers, and you were suggesting, and I just want to make sure we're clear that, like -- so a lot of these issues, parents can ascertain what is a particular provider's approach to that issue. I think you said, I don't want to put words in your mouth, but I think you said, like, you know, we're establishing, like, broad parameters here, and then within that, there's local discretion at the provider level, and that parents can access that?

[02:04:43] That is correct. I mean, if you think about even what you know of the range of the programs I've described in the past, right, there are curriculum used, which there would be no screen time whatsoever, right? When you think about kind of Montessori or Waldorf or others, there are other ones where they very much wanted to show a movie or do some, you know, ABC songs on their smart screen.

[02:05:06] So the parent choice piece, and we've, you know, and again, I think as part of the guidance that you all have just called us to produce, we will sort of emphasize the parent awareness. And that has been part of the ratio of flexibility that was in the prior two budgets.

[02:05:24] And this document now codifies, I think, as noted earlier, many centers have not taken advantage of that ratio of flexibility because of parents, because of, you know, their beliefs about, you know, what are the right number of children to be with adults.

[02:05:40] And so, you know, we've acknowledged that as much. And we can certainly make sure that in this guidance, we focus on making sure parents are informed and making that choice. Okay, that's fantastic. I mean, it's hard to admit, like, that's also, we celebrate that at higher education, too, and the diversity of providers that we have around the state and options available to our students.

[02:06:00] Given many of the issues we've discussed as a board, it's hard to miss. There's a hole in the middle of the donut, and it's worth calling attention to that because it is a fantastic strategy to, you know, let people express their preferences in different ways.

[02:06:17] Anything further on this, Dr. Northern? I just wanted to underscore your earlier point, Ms. Conway, that there's more public comment to come and feedback that the ECAC committee will continue to consider.

[02:06:33] So this is not a closed discussion, and I just appreciate the feedback that we've received today and just encourage all the providers in the state to continue to give public comments so it can be considered by the committee. Thank you.

[02:06:48] Further comments? I would just say that having served on that committee, I remember when we started unraveling the endless— I mean, Jeff, we tore apart like 85 pages of regulation in one meeting and literally threw them away because of redundancies in the regulation.

[02:07:11] It was amazing to me the amount of just stuff that we cut. so i will say you know to dr bryce's point there was a an extreme amount even in the early stages that we you know really worked to alleviate really over burdensome things within regulation and i think this this particular segment of education more than anything else and you guys that do this every day probably more agree with this than anyone else in the room this is a fluid a constantly

[02:07:49] changing world and i mean if the pandemic didn't show that to early childhood really so much more than a lot of other places because of the fact that early childhood centers had to be open to support parents and families to be able to work in our essential personnel professions and so we learned so much during that time period from early childhood that informs our work today in education holistically so um i am having been a member

[02:08:25] of that committee i'm so proud of the work that gets done in that committee because it is it is definitely grueling work that i mean jenna and jeff sit there at the table with everybody and go line by line through everything so um and it everyone has an opinion so just like everything else but well thank you uh president creasy i also just want to make sure to give a particular shout out to jeff in the office of child care health and safety our 100 plus inspectors across the state you are see the worst of the worst right in terms of the ways in which children do

[02:09:04] experience harm and the ability to kind of figure out how do we not overreact to that as we think about regulations right where we have had fatalities where you have had serious injuries but also recognize, you know, as for including the providers in the room, that the vast majority of our centers want nothing more than the best for our children, work very closely with our parents, grandparents, and guardians.

[02:09:27] And so it is always a balancing act, and we just appreciate everybody who contributed as well as the extraordinary staff on Jeff's team who, as Jeff can attest from the beginning, we've tried since the shift to DOE to say our job is to partner with programs to keep kids healthy and safe and for those programs that don't understand or need additional steps yes we will take serious action but for the vast majority it is about a partnership model and we've made a lot of progress there's still work to be done you know and I know that we can I continue to hear from stakeholders on that across the big team that covers all all 131

[02:10:03] municipalities or jurisdictions but it is really important that our providers believe in these regulations to the greatest extent feasible so that they can employ these practices day in day out and we can have you know zero fatalities in child day centers in Virginia. Thank you. Is there anything further before you vote? Okay remember that this vote is inclusive of the two amendments. Dr. Bryce. Aye. Mr. Rotherhance. Aye. Dr. Mr. Hansen.

[02:10:32] Aye. Dr. Northern. Aye. Ms. McPherson. Aye. Ms. Kilgore. Aye. And chair votes aye. Thank you very much thank you appreciate it okay item h first and final review on literary fund loan applications miss burda i think this is your first presentation to the board so um hopefully it hasn't been but so intimidating this morning having to wait uh not at all happy to be here

[02:11:09] thank you so much um dr coons would you like to formally introduce miss burda to us absolutely christina burda has been with us for about a month and we are very excited to have her expertise she has served in school divisions most recently such as hanover chesterfield port portsmouth and a variety of perspectives and also served in the chief financial officer role at the agency prior so she has a wealth of both school division and state experience has been recognized nationally

[02:11:44] by ASBO, which is the version, the national organization of VASBO, which is our Association of School Business Officials. So we are very thankful, and she has hit the ground running with all kinds of fun opportunities. Thank you, Dr. Coons, and thank you, President Creasy.

[02:12:04] This item before you this morning is the first and final review of literary fund loan releases for two projects specifically for Franklin City Public Schools, totaling $2 million. The submission of all application and documentation requirements has been met by Franklin City Public Schools for the release of these loans.

[02:12:22] In the executive summary of your board packet, there is a brief description of the two projects that are being included for approval. The interest rate for these loans is based on their composite index, which is allowing them to receive an interest rate of 2% per annum for a 20-year loan period.

[02:12:39] The Superintendent of Public Instruction recommends waiving the first read and approval of the release of these two literary loans based on the loan amounts terms and eligible interest rate requested in its loan application as indicated in the executive summary I am happy to answer any questions that you may have specifically about these applications no anything else for us before we move with us nope okay thank you very much is there a motion to waive first review

[02:13:16] and approve the release of two literary fund loans requested by Franklin City public schools based on the loan amounts terms and eligible annual interest rate requested in its loan application second any discussion on this item okay Dr.

[02:13:37] Bryce aye Mr. Rotherham aye Mr. Hanson aye Dr. Northern aye Ms. McPherson aye Ms. Kilgore aye and chair votes aye thank you Ms. Ferdinand thank you thank you Mr. Gilstrap item aye first and final review fast-track regulatory action on the Virginia Literacy Act implementation. Good morning, President.

[02:14:09] Good morning, President Creasy, members of the board, Dr. Koons. Before you today, we have a first and final review of fast-track regulation actions to implement provisions for the Virginia Literacy Act. More specifically, these would be out of Chapter 543 for teacher education. Chapter 757 of the 2022 Acts of the Assembly Special Session 1 directs the Board of Education to require, pursuant to regulation, each education preparation program offered by a public institution of higher education or private institution of higher education that provides

[02:14:48] training for any student seeking initial licensure by the Board shall include a program of coursework and require all such students to demonstrate mastery in the science-based reading research and evidence-based literacy instruction. The bill provides that for any student seeking licensure by the board as a teacher with an endorsement in early childhood elementary education or special education with an endorsement as reading specialists ensure that reading coursework and field practice opportunities are significant focus of education preparation program these regulatory changes are necessary

[02:15:27] and urgent since the provisions of this act shall become effective beginning the 2024-2025 school year this proposed regulatory action is necessary to conform with the change in virginia statutory law i'll also add that we will have chapter 23 coming to you at the next board meeting should this pass i ask that we recommend that the Board of Education waive first and final review and approve the regulatory action, regulatory change included in this item as recommended by ABTEL. Dr. Creason.

[02:16:01] Is there a motion to waive first and final review, or first review and approve the regulatory change included with this item that's recommended by ABTEL? Second. Is there any discussion on this item? Dr. Northern? I'm just curious, do you have a sense of how many of our institutions are already providing this type of training i hope i hope all of them but just give me your sense of of that i would not say all but i would say the vast majority we're pretty excited that so many have

[02:16:38] already just taken this up and you know they read they read the bill when it was passed and so they went ahead and just started adjusting their programs and so quite a few uh a few are just waiting for little subtle changes that we will be providing with this regulatory change but that may have major change for most and I'm sorry just a follow-up do you get the sense that they are aware of the curriculum that we've approved in the early grades in terms of those scientifically based curriculum and understand the need to perhaps train in those specific curriculum yes I attended the VACTE conference in Roanoke two weeks ago I believe and it was a very

[02:17:18] high topic of discussion I do believe that they are aware awesome thank you there are questions or comments here hearing none we'll proceed with the vote dr. Bryce aye mr. Rotherham aye mr. Hansen dr. Northern miss McPherson miss Kilgore and chair votes aye thank you mr. Gilstrap mr.

[02:17:46] Chapman item J first and final review of finalization of periodic reviews of regulations thank you president Creasy vice president Hansen members of the board. This is another set of periodic reviews that we have to for the board to close out. I think the board is becoming fairly familiar with this process. The two chapters for which we are looking to close periodic reviews today are 8 VAC 20-360 which are is

our rules governing general education development certificates and 8 VAC 20-543 which is our regulations governing the criteria

[02:18:21] to identify toxic art materials labeling use in elementary grades prohibited. Both Both of these chapters, I think, need significant regulatory work. The recommendation as a result of the periodic review on the rules governing general education development certificates, that this chapter is actually okay for the board to repeal.

[02:18:42] In large part, this is because the general education development certificate program is now handled through a completely different process through a zero-cost state procurement. And so these regulations are no longer actually referring to the correct thing. There's actually a broader application than just the GED program.

[02:19:00] So we think that this can be repealed from when it was first promulgated in the 1980s, I think, until today. And a similar thing goes for Chapter 530, except what the recommendation is is actually that there be a regulatory action in order to consolidate and amend.

[02:19:16] This is another chapter that was promulgated in the 1980s. There has been, at the time, the guidance in these regulations was mirroring federal requirements. Those federal requirements have since been codified into the Code of Federal Regulations, and so we think that this can be reduced into a much more simple manner and kind of crystallized into a set of directions to school divisions to follow the federal law.

[02:19:41] So we think that we can reduce this fairly significantly and consolidate this under our regulations governing local school boards and school divisions, which is 8VAC 20-720. As a reminder, this is just an unapproval to close out these periodic reviews.

[02:19:57] We will bring a separate action likely in December for first review in order to begin the regulatory process to make these changes. Thank you, Mr. Chapman. Is there a motion to waive first review and approve closing of the periodic reviews on the regulatory chapters that Mr. Chapman has identified in this item?

[02:20:21] Second. Any discussion here? Hearing none, Dr. Bryce? Aye. Mr. Rotherham? Aye. Mr. Hanson, Dr. Northern, Ms. McPherson, Ms. Kilgore, and Chair Boats, aye.

[02:20:38] Thank you for that item, and Mr. Chapman, you are on deck for K also. Yes, thank you very much. This item is for first review. These are regulatory actions resulting from the periodic reviews that were closed in the last two months. And so the chapters here that we're looking to make changes to are 8VAC 20-290, which is regulations governing the school lunch sale of food items.

[02:21:04] You may recall from the periodic review that this chapter is just no longer in use. It reflects outdated terminology and references outdated law. So we think that this chapter can be repealed. 8VAC 20-320 is the regulations governing physical and health education.

[02:21:21] We also think that this can be repealed. This was promulgated, again, in the early 80s before the SOL structure was in place, And so now there are separate statutory directives to follow the physical education and health standards of learning. So we don't think that this chapter is fruitfully guiding school divisions because of the way the SOL structure has replaced that.

[02:21:44] And then similarly, 8 BAC 20S 730, the way that this chapter was written is a little bit out of step with the statutory requirements. We think defaulting to the statutory requirements is the right way to go, which means that we can roll back the majority of this chapter. There are a couple of elements that have to do with data collections for truancy-related data that we do think and staff thinks needs to be maintained and preserved.

[02:22:07] We don't think that it needs to be maintained in this chapter anymore as a whole, so the recommendation will be, and the recommendation here is to actually move these into a VAC 720, which are regulations governing local school boards and school divisions, just so that school divisions can go to the same chapter and see all of the regulations for which they are responsible.

[02:22:28] Again, this is for first review, and so we would like to bring this back in December, but the recommendation will be to approve these then. Thank you, Mr. Chapman. We will accept this item for first review and see you in December.

[02:22:46] And you have item L as well. I have item L, yes. Thank you very much. We have a couple more guidance documents for reduction. We have continued to go through the agency's fairly robust catalog of guidance documents, trying to identify guidance documents that we don't think meet the definition.

[02:23:03] Of a guidance document, we have four more all around, cluster around two topic areas, speech language pathology, working with students who are deaf and hard of hearing, and then autism, guidance-related autism. All of these documents, I think, are really characterized as best practice documents.

[02:23:20] We do not think that these meet the legal definition of a guidance document as interpreting or implementing the agency's rules or regulations or a statute. And so we've discussed these with the Office of the Attorney General. Again, this is a technical change. These documents will continue to be active.

[02:23:37] They will continue to live on the BDOE website. This is really just saying we don't think these meet the legal definition of a guidance document, and so the appropriate place for them to be housed is really on the department website as they currently live there and just not on the Virginia Regulatory Town Hall. Thank you.

[02:23:55] We will accept this item for first review and see you in December. Thank you very much. I think item M is Deputy Superintendent Cooper. First review proposed state-approved textbooks for English 612.

[02:24:13] Good morning again. With the adoption of the 2024 English Standards of Learning by the board in March 2024, the department followed the board-approved textbook review process to curate the list of proposed textbooks being brought to you today for first review.

[02:24:31] This is focused on grades 6 through 12 textbooks for reading and writing, and the recommendation is to receive for first review thank you we will receive this item for first review and then we have item n is that youtube yes it is okay so this is with the adoption of the 2023 math standards of learning by the board in august 2023 the department followed the board approved textbook process to review a list of textbooks for math for grades k through

[02:25:07] 12 and the recommendation is to receive for first review as well thank you we will accept this item as well on first review and see you in december um and moving on to item o 24 board annual report

can i have someone from the board staff come down and take notes so um president creasy we every year provide an annual report to the board of education um in our work session we discussed

[02:25:47] about having that draft of the board annual report in october because we do not have a meeting in november so that this is under first review for october with an opportunity for discussion and feedback so that we can revise this and plan this to be submitted immediately following our board meeting in december to be in alignment or as in close in alignment to the december 1 deadline from the general assembly in this item you will see an extensive summary of both the data of where

[02:26:22] we are and the impact of some of the board actions you will also see a great deal of information around what the board has accomplished and what the board has focused on what we would like to do today is take some really good notes and i got joe and connor to come down so that's exciting we've got two note takers to kind of give us feedback on this rather large report i will say i want to give just a huge compliment to the team we did not think we were going to be able to turn some of this data around so quickly for this meeting because some of this data was finalized on September 30th so I am very proud and appreciative of their

[02:26:59] ability to turn around things like the accreditation and the teacher vacancy and items like that which were due September 30th October 1st okay who has comments here who wants they're ready to take notes I'm sure we've got lots of comments and notes to provide so um who wants to start anyone dr northern um i thought it was exceedingly um thorough and comprehensive um and just thank the staff for compiling all of this

[02:27:36] information and making us all feel good about all the activity that we had going on in the past year i think the one area that i saw that could use a little um i don't know it's more like futuristic I think the student based funding formula is one goal that we had in our set of goals.

[02:27:58] And we've not been able to move too much on that because we've been very busy with, you know, our performance framework and support system and so on and so forth. So I would just put some kind of notification around that that's going to be part of our work in the forthcoming year.

[02:28:14] And then we just wanted to try to get some guidance and some research on those funding systems from other states. just to inform our long-term goal there. - Further comments, Mr. Rotherham.

[02:28:31] - Thank you, Madam President. And I'd be happy to work on this offline if it's helpful. I just feel like what we heard from Dr. Cain yesterday, and we have some other data that just upfront, I feel like we work through, and there's certainly nothing there that's inaccurate or anything like that, but I feel like we could provide a little bit more context on sort of what we're seeing in the overall data, what the accreditation is showing, why we are doing the bifurcation, which is described in the document, and just to fully help people appreciate where we are and our most recent assessment data and so forth, and try to, again, help people really

[02:29:09] appreciate the context in which we're trying to create this new system. And like I said, I'd be happy to -- if I can be helpful in talking to any of that, I'd be more than happy to between now and when the report's finalized in the next meeting. Further comments or questions?

[02:29:25] Mr. Hanson? I also appreciate the good work that's gone into this. I just maybe likewise can work offline on some of the lab school and the choice provisions as well.

[02:29:41] I just think in context and also maybe laying the foundation of where things might go, I offer some context there. Thank you. Anything further? Dr. Northern?

[02:30:01] Sorry, I forgot this other comment. I think one thing that might be helpful is to include a couple exemplars in here. I know that we've, you know, and maybe it's just a sidebar or a little, you know, shaded section that gives an example of a school or district that's really knocking it out of the park on closing our chronic absenteeism goals.

[02:30:21] But anywhere, I would just give some general guidance. Anywhere where you can call out a district, a division, or a school that's doing some incredible work on any of these areas would add a really nice element to the report and highlight the good work that we're doing across the Commonwealth.

[02:30:38] Would you like us to do those features for the school divisions you heard from yesterday in each of those four areas? Yes, that would be great. We're happy to add that. More comments? Dr. Rotherham? Is it? Anyone else?

[02:30:55] I think we made it easy for you today. Well, we really appreciate it, and the staff took notes of people who are volunteering to help, so we also appreciate that opportunity. Thank you so much for your collaboration. We really appreciate it. Okay, so item P is a written report on the exemplar awards that you all have in your board packet, that brings us to a discussion I just want to thank the board for such

[02:31:32] recognition today we had eight blue ribbon schools we had four school divisions yesterday we all had the opportunity to see a band we saw almost 10% of our school divisions in the past two days so I'm just really incredibly thankful and grateful for the opportunity to bring school divisions here to talk about the work and to contextualize the practice. I know our school divisions are working hard. Scott Brabrand talked about the implementation work that they are working on and appreciate that. I also want to continue to shout out the accountability and data and research

[02:32:07] teams. They have had 16 meetings since our last meeting with regional school divisions, two with each region. The first meeting overviewed the school performance and support framework and how that would operate in elementary schools they have since sent actual data to each school division and walked through the data modeling for middle school and high school with the superintendents and now have started working with regional school-based teams and superintendent teams so that might be everything from a chief academic officer

[02:32:41] to a ddot to a set of principals so they have been non-stop out in the field and really working collaboratively to support our school divisions not just to receive data but to understand and use that data and make informed decisions in their next step so I really want to thank them and their hard work anyone else to add anything

[02:33:05] during this time okay well with that it is 11:28 and we may actually have a record here, completing our meeting before noon.

[02:33:29] So if there is nothing further from members of the board, our meeting is adjourned.



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